

TAB 2



Board of Education Report

File #: Rep-013-24/25, **Version:** 1

Approval of Facilities Contracts Actions

September 10, 2024

Procurement Services Division - Facilities Contracts

Action Proposed:

Ratify the Procurement Services Division (PSD) contract actions taken by Facilities Contracts under delegated authority as listed in Attachment “A” including: award of advertised construction contracts; award of job order contracts; award of job order contract amendments; approval of change orders; completion of contracts; award of informal contracts; rejection of bids; award of professional pilot program; extra services/amendments for architectural and engineering contracts and approve the proposed contract listed in Attachment B including; Major Modernization Project at Garfield HS.

Background:

Facilities Contracts staff prepares monthly reports for contract actions necessary for the execution of projects approved by the Board and contained in the FSD Strategic Execution Plan (SEP), and for the maintenance and operation of District facilities in accordance with District policies and Board-delegated authority. As described in the November 12, 2013, Board Report #048-13/14 Informative, detailed information is provided on the Facilities Services website.

Expected Outcomes:

Approval of these items will allow services provided by these contracts to proceed in support of FSD projects, District policies and goals, and the Board-approved FSD-SEP.

Board Options and Consequences:

The Board can approve all actions presented or postpone selected actions pending receipt of additional information. Non-ratification of actions awarded under delegated authority in Attachment “A” will result in the immediate discontinuance of services. While non-ratification may be legally defensible, it will likely result in costly litigation over discontinued payments or if the District attempts to reclaim payments made to a vendor. District costs will likely increase as fewer contractors compete for future procurements.

Policy Implications:

This action does not change District policy and conforms to California Education Code section 17604 that permits the Board of Education to delegate authority for Facilities Contracts (Board Report #444-17/18), which the Board exercised on May 8, 2018.

Budget Impact:

The contract actions presented are within the budget authority previously approved by the Board. Unless indicated otherwise, all contract actions are Bond funded.

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Student Impact:

The contract actions will help ensure that the students are provided with safe and healthy environments, and up to-date facilities that promote learning.

Equity Impact:

Not Applicable.

Issues and Analysis:

There are no policy implications on these agreements.

Attachments:

Attachment “A” - Ratification of Facilities Contracts Actions Awarded Under Delegated Authority

Attachment “B” - Approval of Facilities Contracts Actions Not Under Delegated Authority

Linked Materials

Previously adopted Board report(s) referenced:

- In the background [Board Report No. 048-13/14 <https://drive.google.com/file/d/1q-FUsW7AXKe8h0A4KY-J3OVby30HueD6/view>](https://drive.google.com/file/d/1q-FUsW7AXKe8h0A4KY-J3OVby30HueD6/view), dated November 12, 2013, Informative
- In the policy implications [Board Report No. 444-17/18 <https://drive.google.com/file/d/16sRw7yPe-tScbr2wG8AMTWB9QSeiQazM/view>](https://drive.google.com/file/d/16sRw7yPe-tScbr2wG8AMTWB9QSeiQazM/view), dated May 8, 2018.

Informatives:

Not Applicable.

Submitted:

08/09/24

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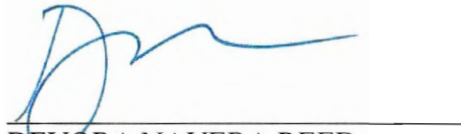
RESPECTFULLY SUBMITTED,


 ALBERTO M. CARVALHO
 Superintendent

APPROVED BY:

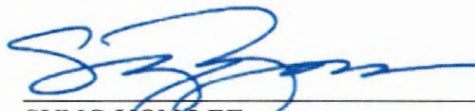

 PEDRO SALCIDO
 Deputy Superintendent,
 Business Services & Operations

REVIEWED BY:


 DEVORA NAVERA REED
 General Counsel

☒ Approved as to form.

APPROVED BY:

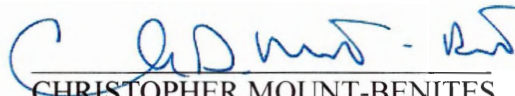

 SUNG YON LEE
 Deputy Chief Business Officer
 Business Services and Operations

REVIEWED BY:


 NOZBERTO DELGADILLO
 Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement

APPROVED & PRESENTED BY:


 CHRISTOPHER MOUNT-BENITES
 Chief Procurement Officer
 Procurement Services Division

REVIEWED BY:


 KRISZTINA TOKES
 Chief Facilities Executive

☒ Approved as to facilities impact

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item A

<u>CONTRACTOR</u>	<u>IDENTIFI-CATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
Beta Investments & Contracts, Inc. (SBE)	2310038	<u>Riley HS</u> HVAC Replacement Project Board Member: <u>Tanya Ortiz Franklin</u>	06/25/24 – Completion	\$4,183,100 Bond Funds (100%)

Ratification of formally competed best value contract selected from nine (9) bids received to deliver a Heating, Ventilation and Air Conditioning (HVAC) replacement project at Thomas Riley High School - CYESIS as authorized on May 10, 2016 ([Board Report No. 386-15/16](#)).

The project upgrades HVAC systems and seismically retrofits the foundations of the classroom, gymnasium, nursing, library, and administration buildings. The HVAC systems are over 15 years old and are beyond economical repair. The project will include site accessibility improvements to the buildings, as well as the relocation of a new main switchboard and installation of a new outdoor Los Angeles Department of Water and Power (LADWP) transformer for service to the buildings. Pillar 4 of the Strategic Plan is supported by this action.

The contractor has worked with the District since 1994.

Requester:

Steve Boehm, Acting Director of Facilities Project Execution
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item B

<u>CONTRACTOR</u>	<u>IDENTIFI-CATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
Pinmor Construction, LLC	2410029	<u>Castle Heights ES</u> Classroom Replacement Project Board Member: <u>Dr. George J Mckenna III</u>	05/13/24 – Completion	\$33,610,282 Bond Funds (100%)

Ratification of formally competed best value contract selected from five (5) bids received to provide classroom replacements and improvements at Castle Heights Elementary School as authorized on November 14, 2017 ([Board Report No. 189-17/18](#)).

The project entails the construction of a new two-story classroom building with associated interim housing. This classroom replacement project removes aging portable buildings and constructs a new classroom building. The school has eight portable buildings with nine classrooms that will either be relocated or demolished. Included in the project are nine new classrooms and support spaces; infrastructure to support the new facilities including an enhanced information technology network convergence system; new clock system, upgrades to landscape, hardscape, parking, and playground areas in project-related areas; installation of interim housing classrooms, as well as site work, path of travel, and other required improvements. The project will also address upgrades to aging infrastructure including sewer, water, electrical and gas as required. Americans with Disabilities Act (ADA), Division of State Architect (DSA), and any other required improvements or mitigations to ensure compliance with local, state and/or federal requirements. Pillar 4 of the Strategic Plan is supported by this action.

The contractor has worked with the District since 2021.

Requester:

Steve Boehm, Acting Director of Facilities Project Execution
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item C

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
Pinmor Construction, LLC	2410030	<u>Castle Heights ES HVAC Replacement Board Member: Dr. George J Mckenna III</u>	05/13/24 – Completion	\$10,586,480 Bond Funds (100%)

Ratification of formally competed best value contract selected from five (5) bids received to construct and deliver the project to replace Heating, Ventilation and Air Conditioning (HVAC) Systems (at multiple buildings) at Castle Heights Elementary School, as authorized on January 12, 2021 ([Board Report No. 110-20/21](#)).

Pinmor Construction, LLC will replace approximately 41,000 square feet of HVAC systems at multiple buildings, and will utilize interim housing (classrooms) to deliver the project. Pillar 4 of the Strategic Plan is supported by this action.

The contractor has worked with the District since 2021.

Requester:

Steve Boehm, Acting Director of Facilities Project Execution
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item D

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
Royal Construction and Builders Inc. (SBE)	2410053	<u>San Pedro ES Accessibility Enhancement Project Board Member: Jackie Goldberg</u>	04/22/24 – Completion	\$2,537,000 Bond Funds (100%)

Ratification of formally competed best value contract selected from seven (7) bids received to provide Americans with Disabilities Act (ADA) improvements at San Pedro ES as authorized on December 7, 2021 ([Board Report No. 144-21/22](#)).

The project upgrades the following facilities to comply with the ADA and improve program accessibility: door hardware, thresholds, accessible paths of travel, signs, restrooms, drinking fountains, a sink/sink cabinet, assistive listening devices, intercoms, a metal ramp, pieces of accessible furniture, an assembly seat, railings, existing elevator modifications, a playground component, parking areas, and door modifications/auto openers. Pillar 4 of the Strategic Plan is supported by this action.

The contractor has worked with the District since 2006.

Requester:

Steve Boehm, Acting Director of Facilities Project Execution
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS SOUTH REGION BUNDLE \$2,911,006

Item E

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
Telenet VoIP, Inc. (SBE)	<u>224235</u>	<u>52nd St ES</u>	Various	<u>\$183,083</u>
	<u>224232</u>	<u>75th St ES</u>		<u>\$217,260</u>
	<u>224224</u>	<u>95th St ES</u>		<u>\$163,647</u>
	<u>224249</u>	<u>Dorsey HS</u>		<u>\$378,619</u>
	<u>224228</u>	<u>Gompers MS</u>		<u>\$303,743</u>
	<u>224230</u>	<u>Griffith ES</u>		<u>\$178,218</u>
	<u>224202</u>	<u>Hawkin HS C / DAGS</u>		<u>\$252,722</u>
	<u>224222</u>	<u>Hillcrest ES</u>		<u>\$177,655</u>
	<u>224223</u>	<u>King Jr ES</u>		<u>\$196,094</u>
	<u>224231</u>	<u>La Salle Ave ES</u>		<u>\$193,135</u>
	<u>227229</u>	<u>Markham MS</u>		<u>\$351,974</u>
	<u>224225</u>	<u>Western Ave TECH Magnet</u>		<u>\$188,542</u>
	<u>224226</u>	<u>Woodcrest ES</u>		<u>\$171,604</u>

Ratification of thirteen (13) formally competed best value contracts to provide video surveillance and monitoring systems Districtwide per District specifications. Contractors will also provide IP enabled intrusion alarm systems per District specifications.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 of the Strategic Plan is supported by this action.

Contract Value: \$2,911,006 (Certificates of Participation 2023A Funds 100%)

Requester:

Soheil Katal, Chief Information Officer
Information Technology Services

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACTS AWARDS – GENERAL CONTRACTING BENCH \$18,000,000

Item F

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>CONTRACT TERM</u>
Reyes Electrical Contractor, Inc. (SBE)	2430032 / C1117	06/21/24 - 06/20/25
Alternate Power & Construction, Inc. (SBE)	2430033 / C1118	06/20/24 - 06/19/25
Thomasville Construction, Inc. (SBE)	2430034 / C1120	06/17/24 - 06/16/25
R Brothers, Inc. (SBE)	2430035 / C1121	06/14/24 - 06/13/25
Beta Investments & Contracts, Inc. (SBE)	2430036 / C1123	06/25/24 - 06/24/25
MIK Construction, Inc.	2430037 / C1125	06/25/24 - 06/24/25
Fredrick Towers, Inc. (SBE)	2430038 / C1127	06/13/24 - 06/12/25
Geronimo Concrete, Inc. (SBE)	2430039 / C1129	06/17/24 - 06/16/25
California Certified Construction & Electrical, Inc. (SBE)	2430040 / C1130	06/21/24 - 06/20/25

Ratification of nine (9) formally competed Job Order Contract awards procured via RFQ R-24043 to provide general contracting services Districtwide. The authority to increase or decrease individual amounts for these contracts will be limited to the aggregate amount of \$18,000,000.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 of the Strategic Plan is supported by this action.

NOT-TO-EXCEED AGGREGATE AMOUNT
\$18,000,000 (100% Bond Funds)

Requester:

Steve Boehm, Acting Director Project Execution Branch
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACTS AMENDMENTS

Item G

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>CONTRACT TERM INCLUDING THIS AMENDMENT</u>	<u>AMOUNT</u>
Telenet VoIP, Inc. (SBE)	2430002 / (2430002.01)	10/03/2023 through 10/01/2024	*\$1,200,000 Bond Funds (100%)

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide electrical contracting services Districtwide.

The contractor has worked with the District since 2006. These services provide operational effectiveness and modernize infrastructure. Pillar 4 of the Strategic Plan is supported by this action.

Initial Contract Value:	\$ 350,000
*Amendment No. 1	\$ 1,200,000
<i>(Executed Date: 06/24/24)</i>	

Aggregate Contract Value: \$1,550,000

Requester:

Greg Garcia, Acting Director of Facilities Maintenance & Operations
Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

Item H

B. APPROVAL OF CHANGE ORDERS

July 2024 = \$5,839,851

		<u>QUANTITY</u>	<u>AMOUNT</u>
	i. New Construction contract change orders that do not individually exceed 10 percent for July 2024 (Average Transaction: \$39,631; Median Transaction: \$13,401)	27	\$1,070,034
	ii. New Construction contract credit change orders for July 2024:	2	<\$111,700>
	iii. Existing Facilities contract change orders that do not individually exceed 15 percent for July 2024 (Average Transaction: \$17,055; Median Transaction: \$5,792):	313	\$5,100,940
	iv. Existing Facilities contract credit change orders for July 2024:	13	<\$456,759>
	v. Existing Facilities contract change orders that individually exceed 15 percent (but do not exceed 25 percent) for July 2024, requiring 75 percent approval by the Board:	0	\$0

C.	COMPLETION OF CONTRACTS – July 2024	23	\$16,591,227
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D.	AWARD OF INFORMAL CONTRACTS (Not Exceeding \$114,500)		
	A & B Letters for July 2024 (Average Transaction: \$37,057; Median Transaction: 21,335)	20	\$742,145

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF PROFESSIONAL PILOT PROGRAM

Item I

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
Los Angeles Cleantech Incubator, Inc.	2420057/ (C2722)	District-wide Detailed Route Energy Analysis for Buses	06/24/24 – Closeout	\$0

Ratification of a sole source, no-cost agreement to conduct detailed route energy analysis for school bus routes operating out of four (4) depots: Gardena Bus Garage, Newman Nutrition Center, San Julian Bus Garage, and Sun Valley Bus Garage.

This is a pilot project to provide a school bus fleet electrification analysis through a proprietary, software-based planning tool, EVopt, developed by Microgrid Labs, Inc. (MGL). The District will receive information regarding routes that are electrifiable, the size of bus batteries required for each route; charger power ratings to meet the operating schedule of the bus fleet; the energy capacity required from the utility; and the capital cost of the project for budgeting and grant writing purposes. Training on the use of the software, EVopt, will be provided to the Transportation Services Branch so that any future route analysis can be self-performed. The analysis and training shall be performed by MGL who will be receiving pilot program funding from Los Angeles Cleantech Incubator.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 of the Strategic Plan is supported by this action.

Requester:

Christos Chrysiliou, Chief Eco-Sustainability Officer
Eco-Sustainability Office

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

**EXTRA SERVICES / AMENDMENTS FOR ARCHITECTURAL AND
ENGINEERING CONTRACTS**

\$79,231

Item J

CONTRACT NOS.	1920003/4400006934; 1920023/4400007774; 1920023/4400007774; 2120147/4400009640; 2120147/4400009640; 2220020/4400009934; 2220032/4400010184; 2220041/4400010542; 2320024/4400011365;
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Extra services are for design work that is not covered under the original Agreement. June and July Extra Services are listed at the following link: [BOE 013 Extra Services](#)

These services provide operational effectiveness and modernize infrastructure. Pillar 4 of the Strategic Plan is supported by this action.

**ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY**

**A. AUTHORIZATION TO AWARD A DESIGN-BUILD MAJOR
MODERNIZATION PROJECT CONTRACT**

Item K

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>AMOUNT</u>
Hensel Phelps	2410034	Garfield HS Major Modernization Project	\$124,905,065 100% Bond Funds

Authorization to award a formally competed contract for the design and construction of the Garfield High School Major Modernization Project to Hensel Phelps, in partnership with NAC Architecture. The contractor was selected using the design build (Education Code 17250) procurement method. The Project will provide safe and updated school facilities that support 21st century teaching and learning.

The Board of Education authorized the project on November 15, 2022 ([Board Report No. 074-22/23](#)). Prior to the Board of Education authorizing this contract award, it must adopt the Mitigated Negative Declaration (MND) for the Project, as presented by the Office of Environmental Health and Safety (Board Report No. 21-24/25), and subsequently approve the Project, as presented by the Facilities Services Division (Board Report No. 22-23/24), at its September 10, 2024 Board Meeting.

[Click here to view project scope, schedule, and budget](#)

Board Member: Dr. Rocío Rivas

Contract Term: Contract execution through DSA certification and closeout

Contract Value: \$124,905,065

Requester:

Aaron Bridgewater, Director of Asset Management
Facilities Services Division